EUROPEAN COMMISSION
Directorate-General for Internal Market, Industry, Entrepreneurship and SMEs
Single Market Enforcement
Notification of Regulatory Barriers

Notification Number : 2020/0104/D (Germany)

Order restricting foreign trade in certain goods (medical protective equipment)

Date received : 04/03/2020
End of Standstill : (withdrawn)

Message

Message 002

Communication from the Commission - TRIS/(2020) 00759
Directive (EU) 2015/1535
Translation of the message 001
Notification: 2020/0104/D

No abre el plazo - Nezahajuje odklady - Fristerne indledes ikke - Kein Fristbeginn - Viivituste perioodi ei avata - Καμμία έναρξη προθεσμίας - Does not open the delays - N'ouvre pas de délais - Non fa decorrere la mora - Neietekmē atlikšanu - Atidėjimai nepradedami - Nem nyitja meg a késéseket - Ma' jiftaħx il-perijodi ta' dawmien - Geen termijnbegin - Nie otwiera opóźnień - Não inicia o prazo - Neotvorí oneskorenia - Ne uvaja zamud - Määräaika ei ala tästä - Inleder ingen frist - Не се предвижда период на прекъсване - Nu deschide perioadele de stagnare - Nu deschide perioadele de stagnare.

(MSG: 202000759.EN)
1. MSG 002 IND 2020 0104 D EN 04-03-2020 D NOTIF

2. D

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4. 2020/0104/D - S00S

5. Order restricting foreign trade in certain goods (medical protective equipment)

6. Safety goggles/visors, face shields, mouth-nose protection products, Class 2 filtering face pieces, Class 3 filtering face pieces, protective gowns, protective suits, gloves

7. -

8. Ban on the export and shipment of goods that fall under the category of medical protective equipment (safety goggles/visors, face shields, mouth and nose protection products, Class 2 filtering face pieces, Class 3 filtering face pieces, protective gowns, protective suits, gloves).

9. As a result of the spread of the coronavirus, the demand for medical protective equipment is increasing. Production increases are nowhere near able to meet this demand, and so we are at risk of having insufficient coverage of these goods, which are vitally important for health care. Measures introduced by other countries, such as specific trade restrictions on individual goods in Thailand, South Korea, Taiwan, India and Kenya, among others, and nationwide

requisitioning of specific goods such as respiratory masks in France, are greatly exacerbating this impact because they effectively reduce nation states' already limited production capacities and render products unavailable to global markets.

10. No basic text(s) available

11. Yes

12. Following yesterday's announcement by French President Macron to requisition all existing stocks and production capacities of respiratory masks for French health workers and French citizens infected with the coronavirus, appropriate protective equipment can be expected to flow out of the German market to France. Because the French measure has immediately removed the supply of these goods from the French market, the French demand side (end users, other private institutions and companies) will soon turn to readily available alternative procurement options. The German market is a prime target for this type of evasion behaviour. To protect the functioning of the German health system and the health of the German population, smooth, secure coverage of these fundamental medical protective equipment goods is essential. Waiting any longer would considerably jeopardise the purpose of the measure since yesterday's announcement of the requisitioning by the French President is likely to result in corresponding outflows of these goods from the German to the French market.

13. No

14. No

15. -

16. TBT aspect

No - the draft is neither a technical regulation nor a conformity assessment.

SPS aspect

No - the draft is neither a sanitary nor phytosanitary measure

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European Commission

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